

## STATE OF COLORADO

## DIVISION OF MINERALS AND GEOLOGY

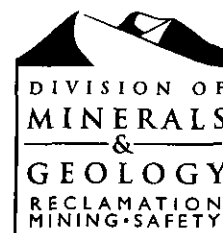
Department of Natural Resources

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Bill Owens  
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April 2, 2003

Steve Mossberg  
CEMEX Inc.  
P.O. Box 529  
Lyons, CO 80540

**RE:            *Pending Technical Revision to Permit Onsite Disposal of Demolition Debris,  
Lyons Quarry, Permit No. M-1977-208***

In order to dispose of inert debris from the plant demolition into played-out quarry pits CEMEX must first gain approval of a technical revision to the mined land reclamation permit. There are no forms associated with technical revisions. Simply identify on the cover page of the submittal that the package is a technical revision to Permit No. M-1977-208. A \$188.00 application fee must accompany the submittal. Inert material is defined in Rule 1.1(20) of the Construction Material Rules and Regulations of the Mined Land Reclamation Board as:

non-water-soluble and non-putrescible solids together with such minor amounts and types of other materials, unless such materials are acid or toxic producing, as will not significantly affect the inert nature of such solids. The term includes, but is not limited to, earth, sand, gravel, rock, concrete which has been in a hardened state for at least sixty days, masonry, asphalt paving fragments, and other inert solids.

The following items must be addressed in the technical revision submittal:

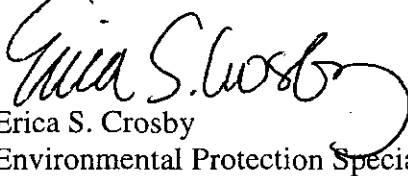
1. A description of the disposal site(s) and their proximity and relationship to ground and surface water. A description of any ground and surface water protection measure to be installed such as landfill liners, covers, diversion ditches, or temporary storm water controls.
2. A description of the debris to be disposed and a discussion of how the debris will be screened and managed to remove non-inert material such as wood. How will wood debris be disposed of?
3. Maps and narrative sufficient to illustrate proposed debris landfills, areas where demolition will occur, areas where debris will be stockpiled, screened, and staged, and haul routes for debris disposal.
4. Provide approximate dates for the inert debris disposal project, although such dates will not be an enforceable component of the permit.
5. Provide an estimate of the volume of debris to be landfilled.
6. Provide a discussion of the hazardous materials that may be encountered during plant demolition and how they will be managed and disposed. Such materials may include asbestos, PCB, fuel, lubricants, solvents, and other chemicals, as well as lead based paint. Describe any sampling and testing procedures to be employed to assure that debris is inert.

It is suggested that selected surfaces where lead based paint may be present, that paint scrapings could be collected and subjected to the Toxicity Characteristic Leaching Procedure (TCLP). Painted surfaces that do not pass TCLP may not be disposed of onsite.

7. Provide an engineering plan describing how debris will be placed and stabilized in disposal cells to prevent voids and settlement.
8. Provide maps, cross sections, and descriptions of the final configuration of disposal cells. The final graded surfaces of the debris must be free draining.
9. Provide a description of the cover soil that will cap the debris and a map and/or description of the source areas for the cover soil.

If you have any questions, please feel free to call me at 303-866-4943.

Sincerely,



Erica S. Crosby  
Environmental Protection Specialist

cc: Carl Mount, DMG (*via email*)  
M. Danelle Volpe; Banks & Gesso LLC (*via fax*)